

Several fishery resources of commercial importance to Australia include species that range between Australian waters and other areas of the ocean including high seas areas and the waters of other countries. Effective management of these resources can only be achieved through regional and international cooperation.

Northern

Immediately north of Australia our main interest relates to Indonesia and Papua New Guinea (through the Torres Strait Treaty).

In 1982 Australia and Indonesia agreed to the introduction in the Timor and Arafura seas of a 'provisional fisheries surveillance and enforcement line' (PFSEL) that defined the water column boundary between the two countries. The PFSEL is recognised by both countries and by Timor Leste for the purpose of fisheries management jurisdiction.

MoU Box

Traditional fishing has been practiced in the waters between Indonesia and Australia since well before European settlement. Australia and Indonesia have established an arrangement to enable Indonesian traditional fishers to access a defined area of Australian waters off the northwest Western Australian coast for the purpose of continuing customary fishing practices. The area is known as the 'Memorandum of Understanding Box' or simply the 'MoU Box'.

Regional — South East Asia

The Regional Plan of Action (RPOA) to Promote Responsible Fishing Practices Including Combating Illegal, Unreported and Unregulated (IUU) Fishing has been established to foster improved cooperation in fisheries management and governance in the South East Asia region. The RPOA-IUU resulted from a joint Australia-Indonesia initiative and was agreed by fisheries Ministers of eleven countries in May 2007. The department is the lead Australian agency in RPOA-IUU matters. The RPOA-IUU recognises that IUU fishing is a complex problem across many maritime jurisdictions and one that is best tackled by coordinated regional action. It is a voluntary instrument which is based on international agreements and instruments for promoting responsible fishing practices.

The objective of the RPOA-IUU is to enhance and strengthen the overall level of fisheries management in the region and promote adoption of responsible fishing practices. Through regional meetings, workshops and studies, RPOA-IUU actions cover:

- sustainable management of fisheries and their environment
- managing fishing capacity
- combating IUU fishing.

A Coordination Committee meets annually to decide on the strategic direction and priorities to fulfil the objectives of the Plan. The Coordination Committee updates the RPOA-IUU workplan each year with a focus on strengthening legal, administrative and policy frameworks, and introducing measures to enhance regional and international cooperation, particularly in monitoring, control and surveillance of fisheries compliance operations.

Products of the RPOA-IUU include:

- A Framework for Fisheries Development Assistance in South East Asia – to help guide and bring together funding bodies and fisheries agencies in the delivery of financial assistance for capacity building and training in all aspects of wild capture fisheries management and fisheries science
- [◦ Net Returns – A Human Capacity Development Framework for Marine Capture Fisheries Management in South East Asia PDF](#)  [3 MB, 64 pages]
- A Framework for Model Fisheries Legislation in South East Asia - which is a country-by-country analysis of the strengths, weaknesses and opportunities for improving regional fisheries legislation and combating illegal fishing. However, each country report was required to be confidential to that country.

Southern

To the south of Australia, two fisheries bodies dominate our regional interest. They are:

- [Commission for the Conservation of Southern Bluefin Tuna \(CCSBT\)](#)
- [Commission for the Conservation of Antarctic Living Marine Resources \(CCAMLR\)](#)

Southern Bluefin Tuna (SBT) is a highly migratory species that spawns in the Indian Ocean near Indonesia. Its range extends across the Indian Ocean to southern Africa and the Atlantic Ocean in the west, to New Zealand and the Pacific Ocean in the east. SBT traverses the exclusive economic zones (EEZ) and territorial sea of countries including Australia, New Zealand, Indonesia and South Africa.

Following overfishing in the 1970s and 1980s, the CCSBT was established in 1994 with the entry into force of the Convention for the Conservation of Southern Bluefin Tuna. The objective of the Convention is to ensure the conservation and optimum utilisation of the SBT stock.

The Convention on the Conservation of Antarctic Marine Living Resources came into force in 1982 and established CCAMLR. The Convention is aimed at the conservation of Antarctic living resources, including fish, where conservation includes rational use. Under the Convention, use of fisheries is to occur on a sustainable basis, depleted fish stocks are to be restored to sustainable levels; and the ecological relationship between harvested, dependent and related populations of Antarctic marine living resources maintained.

Australia's commercial interest in stocks under CCAMLR jurisdiction is increasing, with a substantial toothfish fishery developing within Australia's EEZ around Heard Island and McDonald Islands, a subantarctic island group which are an Australian external territory. Illegal fishing is a major issue in waters under CCAMLR jurisdiction.

In both the CCSBT and CCAMLR, the impact of fishing on non-targeted species of fish and seabirds has become a significant issue, particularly in relation to the levels of by-catch of seabirds (such as species of albatross) by longline fishing boats.

Eastern

Australia has worked within the Pacific Islands [Fisheries Forum Agency](#) (FFA) promoting responsible management of the tuna fisheries in the region. Around 85 per cent of the tuna catch in the surface fishery for skipjack and yellowfin tuna, and about 65 per cent of the tuna catch in the longline fishery for yellowfin, bigeye and albacore tuna, is taken within the EEZs of Pacific Island States, with the remaining catch occurring on the high seas. The FFA acts for member countries in coordinating the management of these highly migratory fish stocks within the South Pacific.

[Western and Central Pacific Fisheries Commission](#) (WCPFC) to ensure, through effective management, the long-term conservation and sustainable use of highly migratory fish stocks in the western and central Pacific Ocean. The Convention was negotiated at a series of multilateral high-level conferences (MHLCS), which included participants from Pacific Island Countries (PICs) and distant water fishing nations.

Western

Australia's regional fisheries interests in the Indian Ocean have traditionally focussed on tuna management and the promotion of responsible fisheries practices within coastal states' EEZs and on the high seas.

However, the recent discovery of rich Orange Roughy and demersal grounds on the deep water ridges of the South West Indian Ocean led Australia, South Africa and New Zealand to cosponsor the negotiations for a new Agreement to manage these stocks.

The [Southern Indian Ocean Fisheries Agreement](#) (SIOFA) which entered into force on 21 June 2012, is a legally-binding treaty with the objective of ensuring the long-term conservation and sustainable use of non-highly migratory fish stocks in the high seas of the southern Indian Ocean.

The management of tuna and billfish fishing in the Indian Ocean entered a new regime with the establishment of the [Indian Ocean Tuna Commission](#) (IOTC). Australia is a member and was founding Chair.

Within the Australian Exclusive Economic Zone

Consistent with its rights and obligations under the United Nations Convention of the Law of the Sea (UNCLOS), Australia declared a 200 nautical mile EEZ and asserts sovereign rights over the fisheries and other living and non-living resources within that area.

In the past, bilateral access agreements granting access for foreign fishing fleets to fish in our EEZ have been negotiated from time to time. These arrangements allowed foreign fleets to access the EEZ to fish

for species under-exploited by the Australian domestic fishing fleet. Significant financial and other benefits, including technology transfer and access to catch and effort data, have flowed to Australia from permitting such access. The growth in the Australian domestic fleets means that no future access for foreign vessels to the Australian EEZ is likely to be granted as Australia no longer has excess fish stocks.

Source: <https://www.agriculture.gov.au/agriculture-land/fisheries/international/cooperation/issues>